

IMPORTANT NOTICE:

- 1. The insurance policy that you are applying to purchase is being issued by an insurer that is not licensed by the State of California. These companies are called "nonadmitted" or "surplus line" insurers.**
- 2. The insurer is not subject to the financial solvency regulation and enforcement that apply to California licensed insurers.**
- 3. The insurer does not participate in any of the insurance guarantee funds created by California law. Therefore, these funds will not pay your claims or protect your assets if the insurer becomes insolvent and is unable to make payments as promised.**
- 4. The insurer should be licensed either as a foreign insurer in another state in the United States or as a non-United States (alien) insurer. You should ask questions of your insurance agent, broker, or "surplus line" broker or contact the California Department of Insurance at the toll-free number 1-800-927-4357 or internet website www.insurance.ca.gov. Ask whether or not the insurer is licensed as a foreign or non-United States (alien) insurer and for additional information about the insurer. You may also visit the NAIC's internet website at www.naic.org. The NAIC - National Association of Insurance Commissioners - is the regulatory support organization created and governed by the chief insurance regulators in the United States.**
- 5. Foreign insurers should be licensed by a state in the United States and you may contact that state's department of insurance to obtain more information about that insurer. You can find a link to each state from this NAIC internet website: https://naic.org/state_web_map.htm.**

6. For non-United States (alien) insurers, the insurer should be licensed by a country outside of the United States and should be on the NAIC's International Insurers Department (IID) listing of approved nonadmitted non-United States insurers. Ask your agent, broker, or "surplus line" broker to obtain more information about that insurer.

7. California maintains a "List of Approved Surplus Line Insurers (LASLI)." Ask your agent or broker if the insurer is on that list, or view that list as the internet website of the California Department of Insurance: www.insurance.ca.gov/01-consumers/120-company/07-lasli/lasli.cfm.

8. If you, as the applicant, required that the insurance policy you have purchased be effective immediately, either because existing coverage was going to lapse within two business days or because you were required to have coverage within two business days, and you did not receive this disclosure form and a request for your signature until after coverage became effective, you have the right to cancel this policy within five days of receiving this disclosure. If you cancel coverage, the premium will be prorated and any broker's fee charged for this insurance will be returned to you.



ATEGRITY SPECIALTY INSURANCE COMPANY

14000 N Pima Rd., Suite 200, Scottsdale, AZ 85260

ATEGRITY TOTAL PROTECTION MANAGEMENT & PROFESSIONAL LIABILITY POLICY DECLARATIONS

NOTICE: YOUR POLICY CONTAINS CLAIMS-MADE LIABILITY COVERAGE. CLAIMS-MADE COVERAGE APPLIES ONLY TO CLAIMS THAT ARE FIRST MADE DURING THE POLICY PERIOD OR EXTENDED PERIOD, IF PURCHASED, AND REPORTED IN ACCORDANCE WITH THE TERMS OF THE POLICY.

THE LIMIT OF LIABILITY AVAILABLE TO PAY DAMAGES WILL BE REDUCED AND MAY BE EXHAUSTED BY COSTS, CHARGES, AND EXPENSES. FURTHERMORE, CLAIM EXPENSES WILL BE APPLIED AGAINST THE RETENTION.

PLEASE READ YOUR POLICY CAREFULLY AND CONSULT YOUR INSURANCE ADVISOR ABOUT ANY QUESTIONS YOU MIGHT HAVE.

Policy Number: 01-B-ML-P80000410-01
Underwriter: Thomas DuPuis

Renewal of: N/A

Item 1:

Parent Organization: Telegraph Ventures, LLC DBA
Maggies Pub
Mailing Address: 11900 Telegraph Rd.
Santa Fe Springs, CA 90670

Producer: RISK PLACEMENT SERVICES (BEVERLY
HILLS, CA)
Producer Address: 9100 Wilshire Blvd. #505
Beverly Hills, CA 90212

Principal Address, if different from mailing address:

Item 2:

Policy Period: Effective: 11/1/2024 Expiration: 11/1/2025
12:01 A.M. local time at Principal Address shown above

Item 3:

COVERAGE(S), LIMIT(S) OF LIABILITY, RETENTION(S), AND DEDUCTIBLE(S)

COMBINED AGGREGATE LIMIT OF LIABILITY: N/A

The "Combined Aggregate Limit of Liability" applies to all **Liability Coverage Parts**. "N/A" means that the combined aggregate does not apply to Coverage Part losses.

PRIVATE COMPANY DIRECTORS AND OFFICERS LIABILITY COVERAGE PART

☒ NOT COVERED	AGGREGATE LIMIT OF LIABILITY	EACH CLAIM RETENTION	CONTINUITY DATE
COVERAGE PART:	Not Covered	N/A	N/A
INDIVIDUALS:			
ORGANIZATION REIMBURSEMENT:			
ORGANIZATION:			
ADDITIONAL DEFENSE LIMIT:			
ADDITIONAL EXECUTIVE LIMIT:			
ANTITRUST SUBLIMIT:			
CRISIS MANAGEMENT SUBLIMIT:			
EMPLOYED LAWYERS SUBLIMIT:			
DERIVATIVE DEMAND SUBLIMIT:			
OUTSIDE DIRECTORSHIP LIABILITY:			

RPSEXE/2024.11.20

ASIC-ML-0001-0824

To Report a Loss

- Dial toll-free #1 (844)777-8323 or visit our
- Website: <https://my.rpsins.com/claimsfnol>
- Contact Insurer directly (see policy section)



ATEGRITY SPECIALTY INSURANCE COMPANY

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NON-PROFIT DIRECTORS AND OFFICERS LIABILITY COVERAGE PART

☒ NOT COVERED	AGGREGATE LIMIT OF LIABILITY	EACH CLAIM RETENTION	CONTINUITY DATE
COVERAGE PART:	Not Covered	N/A	N/A
INDIVIDUALS:			
ORGANIZATION REIMBURSEMENT:			
ORGANIZATION:			
ADDITIONAL DEFENSE LIMIT:			
ADDITIONAL EXECUTIVE LIMIT:			
CRISIS MANAGEMENT SUBLIMIT:			

EMPLOYMENT PRACTICES LIABILITY COVERAGE PART

☐ NOT COVERED	AGGREGATE LIMIT OF LIABILITY	EACH CLAIM RETENTION	CONTINUITY DATE
COVERAGE PART:	\$1,000,000	\$35,000	11/1/2018
EMPLOYMENT PRACTICES:	Included	\$35,000	See Coverage Part
ADDITIONAL DEFENSE LIMIT:	\$1,000,000	\$35,000	See Coverage Part
EMPLOYEE PRIVACY SUBLIMIT:	\$25,000	\$35,000	11/1/2024
IMMIGRATION DEFENSE SUBLIMIT:	\$250,000	\$35,000	11/1/2018
THIRD-PARTY SUBLIMIT:	\$1,000,000	\$35,000	See Coverage Part
WAGE AND HOUR DEFENSE SUBLIMIT:	\$150,000	\$35,000	11/1/2018
WORKPLACE VIOLENCE SUBLIMIT:	\$250,000	\$35,000	See Coverage Part

FIDUCIARY LIABILITY COVERAGE PART

☒ NOT COVERED	AGGREGATE LIMIT OF LIABILITY	EACH CLAIM RETENTION	CONTINUITY DATE
COVERAGE PART:	Not Covered	N/A	N/A
FIDUCIARY LIABILITY:			
ADDITIONAL DEFENSE LIMIT:			
FINES AND PENALTIES SUBLIMIT:			
SETTLEMENT PROGRAM SUBLIMIT:			

CRIME

☒ NOT COVERED	LIMIT OF INSURANCE	PER LOSS DEDUCTIBLE
A.1.1. FIRST PARTY EMPLOYEE THEFT:	Not Covered	N/A
A.1.2. EMPLOYEE BENEFIT PLAN:		
A.1.3. THIRD PARTIES' PROPERTY:		
B.1.4. FORGERY AND/OR ALTERATION:		
B.1.5. PAYMENT CARDS:		
B.1.6. COUNTERFEIT MONEY:		
C.1.7. PREMISES:		
C.1.8. TRANSIT:		
D.1.9. COMPUTER FRAUD:		
D.1.10. FUNDS TRANSFER FRAUD:		
D.1.11. SOCIAL ENGINEERING FRAUD:		
E. EXPENSES SUBLIMIT:		



ATEGRITY SPECIALTY INSURANCE COMPANY

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PROFESSIONAL LIABILITY COVERAGE PART

☒ NOT COVERED

**AGGREGATE LIMIT
OF LIABILITY**

**EACH CLAIM
RETENTION**

CONTINUITY DATE

COVERAGE PART:

PROFESSIONAL LIABILITY:

Not Covered

N/A

N/A

PER DAY LIMIT

AGGREGATE LIMIT

ADDITIONAL COVERED EXPENSES:

RETROACTIVE DATE:

Premium	: \$ 7,891.00
Broker Fee - RPS	: \$ 350.00
Carrier Broker Fee	: \$ 150.00
CA Surplus Lines Tax	: \$ 241.23
CA Stamping Office Fee	: \$ 14.47
Total Charges	: \$ 8,646.70

COVERED PROFESSIONAL SERVICES:

Item 4. POLICY PREMIUM

\$7,891

Item 5. DISCOVERY PERIOD OPTIONS (Does not apply to Crime Coverage Part)

- | | | |
|--------------------|------|-------------------|
| 1. One (1) Year | 100% | OF ANNUAL PREMIUM |
| 2. Two (2) Years | 125% | OF ANNUAL PREMIUM |
| 3. Three (3) Years | 150% | OF ANNUAL PREMIUM |

As provided in the GENERAL TERMS AND CONDITIONS, only one of the above **Discovery Period** options may be elected and purchased. "TBD" indicates that the premium will be determined by **Us** at the time of election.

Item 6: RUN-OFF PERIOD OPTIONS (Does not apply to the Crime or Professional Liability Coverage Parts)

- | | | |
|--------------------|------|-------------------|
| 1. One (1) Year | 100% | OF ANNUAL PREMIUM |
| 2. Two (2) Years | 125% | OF ANNUAL PREMIUM |
| 3. Three (3) Years | 150% | OF ANNUAL PREMIUM |
| 4. Four (4) Years | TBD | OF ANNUAL PREMIUM |
| 5. Five (5) Years | TBD | OF ANNUAL PREMIUM |
| 6. Six (6) Years | TBD | OF ANNUAL PREMIUM |

As provided in the GENERAL TERMS AND CONDITIONS, only one of the above **Run-Off Period** options may be elected and purchased. "TBD" indicates that the premium will be determined by **Us** at the time of election.

Item 7: NOTICE

Notice of Claims to:

Email: newloss@ategrity.com
Phone: (480) 237-2417
Toll Free: (833) 783-6206
Fax: (520) 333-3122

Other Notices to:



ATEGRITY SPECIALTY INSURANCE COMPANY

14000 N Pima Rd., Suite 200, Scottsdale, AZ 85260

Item 8: RISK MANAGEMENT TOOLS

RGR Partners

Email 24/7: HR@RGRPartners.com

Certified HR professionals for all HR and Employment Law related questions

Unlimited Email Access

Reference Policy Number in Subject Line

Coverage afforded by this policy is provided by the Company (Insurer) and named in the Declarations.

In Witness Whereof, the Company has caused this policy to be executed and attested.

A handwritten signature in black ink, appearing to read "Just L Gl", written over the printed name "Secretary".

Secretary

A handwritten signature in black ink, appearing to read "Just L Gl", written over the printed name "President".

President

ATEGRITY TOTAL PROTECTION

FORMS SCHEDULE

Policy Number: 01-B-ML-P8000410-01
Parent Organization: Telegraph Ventures, LLC DBA Maggies Pub

The listed forms are attached to, and form a part of, the **Policy** at the time of issuance.

POLICY FORMS

ASIC-ML-0001-0824	Management & Professional Liability Policy with Risk Management - Declarations
ASIC-ML-0009-0923	Ategrity Total Protection – Forms Schedule
ASIC-ML-0002-1123	General Terms and Conditions
ASIC-ML-0007-1123	Employment Practices Liability Coverage Part
ASIC-ML-0043-1023	Service of Suit

ATEGRITY TOTAL PROTECTION

GENERAL TERMS AND CONDITIONS

VARIOUS PROVISIONS IN THIS POLICY RESTRICT COVERAGE. READ THE ENTIRE POLICY CAREFULLY TO DETERMINE RIGHTS, DUTIES AND WHAT IS AND IS NOT COVERED.

In consideration of the payment of premium, in reliance on the **Application** and subject to the DECLARATIONS and terms and conditions of this **Policy**, we agree as follows.

1. APPLICABILITY OF COVERAGE PARTS

These GENERAL TERMS AND CONDITIONS apply to each Coverage Part of this **Policy**. The terms and conditions of each Coverage Part apply only to that Coverage Part and will not be interpreted to apply to any other Coverage Part. If any provision in these GENERAL TERMS AND CONDITIONS is inconsistent or in conflict with the terms and conditions of any Coverage Part, the terms and conditions of such Coverage Part will be controlling for purposes of that Coverage Part.

2. LIMITS OF LIABILITY AND RETENTIONS

For **Liability Coverage Parts**:

- 2.1. The Limit of Liability, as stated in Item 3 of the DECLARATIONS for each Coverage Part, is the maximum aggregate amount that **We** will pay under such Coverage Part for all **Loss** from all **Claims** covered under such Coverage Part.
- 2.2. If a Combined Aggregate Limit of Liability is included in Item 3 of the DECLARATIONS, then the Combined Aggregate Limit of Liability is the maximum aggregate amount that **We** will pay for all **Loss** from all **Claims** covered under all included **Liability Coverage Parts** combined. Any Limit of Liability applicable to any individual Coverage Part will be part of, and not in addition to, the Combined Aggregate Limit of Liability.
- 2.3. **Our** liability will apply only to that part of **Loss** which exceeds the RETENTION amount(s) applicable to each Coverage Part or Insuring Agreement, as shown in Item 3 of the DECLARATIONS. **You** are responsible for the RETENTION(S), which **You** agree not to insure. If different components of a single **Claim** are subject to different RETENTIONS, the applicable RETENTIONS will apply separately to each component of the **Loss**, but the total of such RETENTIONS will not exceed the largest applicable RETENTION.
- 2.4. All **Claims** arising from the same **Wrongful Act** and all **Interrelated Wrongful Acts** are deemed to be a single **Claim** and, regardless of whether before or during the **Policy Period**, are deemed to have been made at the earliest of the following:
 - 2.4.1. the date at which the earliest **Claim** involving the same **Wrongful Act** or **Interrelated Wrongful Act** is first made; or
 - 2.4.2. the date at which the **Claim** involving the same **Wrongful Act** or **Interrelated Wrongful Act** is deemed to have been made pursuant to 8. NOTIFICATION OF CLAIMS.
- 2.5. **Our** payment of **Loss** reduces the Limit(s) of Liability under each Coverage Part. **Costs, Charges, and Expenses** are part of, and not in addition to, the Limit(s) of Liability and payment of **Costs, Charges, and Expenses** reduce the Limit(s) of Liability. If such Limit(s) of Liability or Combined Aggregate Limit of Liability is exhausted by payment of **Loss**, **Our** obligations under this **Policy** and each Coverage Part, is completely fulfilled and terminated.
- 2.6. If any Limit of Liability is exhausted, the premium for this **Policy** shall be fully earned.

For **Non-Liability Coverage Parts**:

2.7. Limit of Liability

The maximum amount **We** will pay for all covered loss resulting directly from an **Occurrence** is the applicable limit stated in the DECLARATIONS. If the same **Occurrence** is covered under more than one Insuring Agreement, **We** will pay only under the highest applicable limit.

2.8. Deductible

We will not pay for loss resulting from an **Occurrence** unless the amount of such loss exceeds the applicable **Occurrence** deductible shown in the DECLARATIONS. **We** will then pay the amount that exceeds the deductible, subject to the applicable Limit of Liability.

3. **SETTLEMENT AND DEFENSE**

For **Liability Coverage Parts**:

3.1. **We** have the duty and right to defend any **Claim**, including the selection of counsel to defend any **Claim**. Such duty will exist even if any of the allegations are groundless, false, or fraudulent. **Our** duty to defend any **Claim** will cease when the Coverage Part Limit of Liability or Combined Aggregate Limit of Liability have been exhausted by the payment of **Loss** including **Costs, Charges and Expenses**.

3.2. **We** may make any investigation **We** deem necessary.

3.3. **We** have the right to settle any **Claim**; provided, however, no settlement will be made without **Your** consent, such consent will not be unreasonably withheld.

3.4. **You** agree not to settle or offer to settle any **Claim**, incur any **Costs, Charges and Expenses**, or otherwise assume any contractual obligation or admit any liability with respect to any **Claim** without **Our** prior written consent, such consent will not be unreasonably withheld, unless the total **Loss** (including **Costs, Charges and Expenses**) does not exceed the applicable RETENTION; provided the entire **Claim** is resolved and **You** obtain a full release on behalf of all **Insureds**. **We** will not be liable for any settlement, **Costs, Charges and Expenses**, assumed obligation or admission to which **We** have not consented. **You** will promptly send **Us** all settlement demands or offers **You** receive from the claimant(s).

3.5. **You** agree to provide **Us** with all information, assistance, and cooperation which **We** reasonably request and agree that, in the event of a **Claim**, **You** will do nothing that will prejudice **Our** position or potential or actual rights of recovery.

4. **AUTHORIZATION CLAUSE**

By acceptance of this **Policy**, the **Parent Organization** agrees to act on behalf of all **Insureds**, and the **Insureds** agree that the **Parent Organization** will act on their behalf, with respect to the giving of all notices **Us**, the receiving of notices from **Us**, the agreement to and acceptance of endorsements, the payment of the premium and the receipt of any return premium.

5. **WARRANTY**

It is warranted that the particulars and statements contained in the **Application** are the basis of this **Policy** and are incorporated into and constitute a part of this **Policy** and each Coverage Part. By acceptance of this **Policy**, **You** agree that:

5.1. the statements in the **Application** are true, accurate, and complete and that this **Policy** is issued in reliance on the **Application**; and

5.2. with respect to **Liability Coverage Parts**, if the **Application** contains intentional misrepresentations that materially affect **Our** acceptance of the risk, no coverage will be afforded under this **Policy** for any **Insureds** who knew on the effective date of the **Policy** of the facts that were misrepresented, provided that:

5.2.1. knowledge possessed by any **Insured Person** shall not be imputed to any other **Insured Person**; and

- 5.2.2. knowledge possessed by any chief executive officer, chief financial officer, human resources director or any equivalent position of the **Organization**, or anyone signing the **Application**, will be imputed to the **Organization**. No other person's knowledge will be imputed to the **Organization**.

However, **We** will not rescind this **Policy** or a **Liability Coverage Part** (other than a **GL Coverage Part**) for any reason other than cancellation for nonpayment of premium.

6. EXCLUSIONS APPLICABLE TO ALL COVERAGE PARTS

We will have no obligation to pay any sums under this policy, any Coverage Part, or any Insuring Agreement:

6.1. Nuclear Incident

- 6.1.1. under any liability coverage, for injury, sickness, disease, death, or destruction:
- 6.1.1.1. for which the **You** are also insured under a nuclear energy liability policy issued by the Nuclear Energy Liability Insurance Association, Mutual Atomic Energy Liability Underwriters, or Nuclear Insurance Association of Canada, or would be insured under any such policy but for exhaustion of its limit of liability; or
 - 6.1.1.2. resulting from the **Hazardous Properties of Nuclear Material** and with respect to which:
 - 6.1.1.2.1. any person or organization is required to maintain financial protection pursuant to the Atomic Energy Act of 1954, as amended; or
 - 6.1.1.2.2. **You** are, or had this policy not been issued would be, entitled to indemnity from the United States of America, or any agency thereof, under any agreement entered into by the United States of America, or any agency thereof, with any person or organization.
- 6.1.2. under any Medical Payments coverage, or under Supplementary Payments provision relating to immediate medical or surgical relief, for expenses incurred with respect to bodily injury, sickness, disease, or death resulting from the **Hazardous Properties of Nuclear Material** and arising out of the operation of a **Nuclear Facility** by any person or organization.
- 6.1.3. under any liability coverage, for injury, sickness, disease, death, or destruction resulting from the **Hazardous Properties of Nuclear Material**, if:
- 6.1.3.1. the **Nuclear Material** is at any **Nuclear Facility** owned or operated by the **Insured** or on the **Insured's** behalf, or has been discharged or dispersed from such a facility;
 - 6.1.3.2. the **Nuclear Material** is contained in **Spent Fuel** or **Waste** which is or was at any time possessed, handled, used, processed, stored, transported, or disposed of by the **Insured** or on the **Insured's** behalf; or
 - 6.1.3.3. the injury, sickness, disease, death, or destruction arises out of the furnishing by you of services, materials, parts, or equipment in connection with the planning, construction, maintenance, operation, or use of any **Nuclear Facility**, but if such facility is located within the United States of America, its territories or possessions, or Canada, this exclusion applies only to injury to or destruction of property at such **Nuclear Facility**.
- 6.1.4. under a Crime coverage, any loss, damage, or injury resulting from nuclear reaction or radiation, however caused.

6.2. Pollution

- 6.2.1. alleging, based upon, arising out of, attributable to, directly or indirectly resulting from, in consequence of, or in any way involving:
- 6.2.1.1. the actual, alleged or threatened discharge, dispersal, release, escape, seepage, migration, or disposal of **Pollutants**; or
 - 6.2.1.2. any direction or request that any **Insured** test for, monitor, clean up, remove, contain, treat, detoxify, or neutralize **Pollutants**, or any voluntary decision to do so;

including any such **Claim** by or on behalf of the **Organization**, its securities holders or creditors based upon, arising out of, or attributable to the matters described in this exclusion.

This exclusion does not apply:

- 6.2.2. to that part of any **Claim** under the Employment Practices Liability Coverage Part where such **Claim** is for **Retaliation**.
- 6.2.3. to any **Claim** under the Private Company Directors & Officers Liability Coverage Part brought by one or more securities holders of the **Organization** in their capacity as such.

6.3. Privacy and Cyber Incidents

- 6.3.1. alleging, based upon, arising out of, attributable to, directly or indirectly resulting from, in consequence of, or in any way involving:
 - 6.3.1.1. unauthorized acquisition, access, use, disclosure or improper collection or retention of, or failure to protect any non-public personally identifiable information or confidential corporate information that is in your care, custody, or control;
 - 6.3.1.2. violation of any privacy law or consumer data protection law protecting against the use, collection, or disclosure of any information about a person or any confidential corporate information;
 - 6.3.1.3. total or partial damage to, loss, corruption, deterioration, destruction, or alteration of, or the inability or impaired ability to access or manipulate any electronic data, software, electronic databases, computers, or any part of a computer system or network;
 - 6.3.1.4. denial of service or delay, disruption, impairment, failure, or outage of any part of a computer system or network;
 - 6.3.1.5. unauthorized or unlawful access to any electronic data or any part of a computer system or network, including through the transmission of any malicious code, such as a computer virus, worm, logic bomb, malware, spyware, Trojan horse, or other fraudulent or unauthorized computer code; or
 - 6.3.1.6. threat, hoax, or demand relating to subparts 6.3.1.1. through 6.3.1.5. above.

This exclusion does not apply to any **Claim** when otherwise covered under the Employee Privacy Sublimit Coverage Extension in the Employment Practices Liability Coverage Part.

6.4. War and Civil War

- 6.4.1. Occasioned by, happening through, or in consequence of, directly or indirectly:
 - 6.4.1.1. war, invasion, acts of foreign enemies, hostilities whether declared or not, civil war, rebellion, revolution, insurrection, military, or usurped power; or
 - 6.4.1.2. confiscation, nationalization, requisition, destruction of, or damage to property by or under the order of any government, public, or local authority.

7. CANCELLATION

- 7.1. The **Parent Organization** may cancel this **Policy** in its entirety, or any Coverage Part(s) individually, by mailing or delivering to **Us** advance written notice of cancellation.
- 7.2. **We** may cancel this **Policy**, or any Coverage Part(s) individually, by mailing or delivering to the **Parent Organization** written notice of cancellation at least:
 - 7.2.1. 10 days before the effective date of cancellation if **We** cancel for nonpayment of premium; or
 - 7.2.2. solely regarding the **GL Coverage Parts**, 30 days before the effective date of cancellation if **We** cancel for any other reason.

- 7.3. If the notice period conflicts with any governing law or regulation, then the notice period will be deemed to be the minimum notice period permitted under the governing law or regulation.
- 7.4. **We** will mail or deliver **Our** notice to the **Parent Organization's** last mailing address known to **Us**.
- 7.5. Notice of cancellation will state the effective date of cancellation. The **Policy Period** will end on that date.
- 7.6. If notice is mailed, proof of mailing will be sufficient proof of notice.
- 7.7. If this **Policy** or any Coverage Part is cancelled, **We** will retain the pro rata proportion of the premium. However, solely with respect to the **GL Coverage Parts**, if the **Parent Organization** cancels, the refund may be less than pro rata. The cancellation will be effective even if **We** have not made or offered a refund.

8. NOTIFICATION OF CLAIMS

- 8.1. **You** will, as a condition precedent to **Your** rights to payment under this **Policy**, give **Us** written notice of any **Claim** as soon as practicable once such **Claim** is first known to an **Executive**, but in no event later than sixty (60) days after the end of the **Policy Period** or, if applicable, the **Extended Period**.
- 8.2. If, during the **Policy Period** or the **Discovery Period**, if purchased, one of **Your Executives** first become aware of a specific **Wrongful Act** which may reasonably give rise to a future **Claim** covered under this **Policy**, and if **You**, during the **Policy Period** or the **Discovery Period**, if purchased, give written notice to **Us** as soon as practicable of:
 - 8.2.1. a description of the **Wrongful Act** allegations anticipated;
 - 8.2.2. the identity of the potential claimants;
 - 8.2.3. the circumstances by which **You** first became aware of the **Wrongful Act**;
 - 8.2.4. the identity of the **Insureds** allegedly involved;
 - 8.2.5. the consequences which have resulted or may result; and
 - 8.2.6. the nature of the potential monetary damages and non-monetary relief;

then any **Claim** made subsequently arising out of such **Wrongful Act** will be deemed for the purposes of this **Policy** to have been made at the time such notice was received by **Us**. No coverage is provided for fees, expenses and other costs incurred prior to the time such **Wrongful Act** results in a **Claim**.
- 8.3. Notice to **Us** will be given to the address shown under Item 7 of the DECLARATIONS for this **Policy**.
- 8.4. This section does not apply to the Crime Coverage Part which contains notification terms and conditions.

9. ESTATES, LEGAL REPRESENTATIVES, AND SPOUSES

The estates, heirs, legal representatives, assigns, spouses and **Domestic Partners** of natural persons who are **Insureds** will be considered **Insureds** under this **Policy**; provided, however, coverage is afforded to such estates, heirs, legal representatives, assigns, spouses and **Domestic Partners** only for a **Claim** arising solely out of their status as such and, in the case of a spouse or **Domestic Partner**, where the **Claim** seeks damages from marital community property, jointly held property or property transferred from the natural person who is an **Insured** to the spouse or **Domestic Partner**. No coverage is provided for any **Wrongful Act** of an estate, heir, legal representative, assign, spouse, or **Domestic Partner**. All terms and conditions of this **Policy** including, without limitation, the RETENTIONS applicable to **Loss** incurred by natural persons who are **Insureds** will also apply to **Loss** incurred by such estates, heirs, legal representatives, assigns, spouses and **Domestic Partners**.

10. ALLOCATION

- 10.1. In the event **We** have the duty to defend a **Claim** under any Coverage Part in which both **Loss** that is covered by the applicable Coverage Part and loss which is not covered by the applicable Coverage Part is incurred because such **Claim** includes both covered and uncovered matters or because such **Claim** is made against both covered and uncovered parties, where such parties are **Insureds** under this **Policy**, then:

- 10.1.1. this **Policy** will pay one hundred percent (100%) of such **Costs, Charges and Expenses** incurred by such **Insured** on account of such **Claim**; and
- 10.1.2. **You** and **We** will use their best efforts to determine a fair and equitable allocation between covered **Loss** and uncovered loss based on the relative legal and financial exposures and the relative benefits obtained.

10.2. In the event **You** have the duty to defend a **Claim** under any Coverage Part in which both **Loss** that is covered by the applicable Coverage Part and loss which is not covered by the applicable Coverage Part is incurred, either because such **Claim** includes both covered and uncovered matters or because such **Claim** is made against both covered and uncovered parties, then **You** and **We** will use their best efforts to determine a fair and equitable allocation of any remaining loss on account of such **Claim** between covered **Loss** and uncovered loss based on the relative legal and financial exposures and the relative benefits obtained.

11. DISCOVERY PERIOD

11.1. If this **Policy** or any Coverage Part is cancelled or is not renewed by **Us**, for reasons other than non-payment of premium or if the **Parent Organization** elects to cancel or not to renew this **Policy** or a Coverage Part, then the **Parent Organization** will have the right, upon payment of an additional premium calculated at that percentage shown in Item 5 of the DECLARATIONS of the total premium for this **Policy**, or the total premium for the cancelled or not renewed Coverage Part, whichever is applicable, to purchase an extension of the coverage granted by this **Policy** or the applicable cancelled or not renewed Coverage Part with respect to any **Claim** first made during the time set forth in Item 5 of the DECLARATIONS after the effective date of such cancellation or, in the event of a refusal to renew, after the **Policy** expiration date, but only with respect to any **Wrongful Act** committed before such date. The **Parent Organization** will have the right to elect only one of the **Discovery Periods** set forth in Item 5 of the DECLARATIONS.

11.2. As a condition precedent to the right to purchase the **Discovery Period** set forth in item 1. above, the total premium for the **Policy** must have been paid. Such right to purchase the **Discovery Period** will terminate unless written notice, together with full payment of the premium for the **Discovery Period**, is received by **Us** within thirty (30) days after the effective date of cancellation, or, in the event of a refusal to renew, within thirty (30) days after the **Policy** expiration date. If such notice and premium payment is not given to **Us**, there will be no right to purchase the **Discovery Period**.

11.3. In the event of the purchase of the **Discovery Period**, the entire premium therefore will be deemed earned at the commencement of the **Discovery Period**.

11.4. The exercise of the **Discovery Period** will not in any way increase or reinstate the limit of **Our** liability under any Coverage Part.

11.5. This section does not apply to the Crime Coverage Part.

12. RUN-OFF COVERAGE

In the event of a **Change in Control**:

12.1. **You** will provide **Us** written notice no later than 30 days after the effective date of the **Change in Control** together with any other information **We** may request.

12.2. Unless **You** and **We** agree in writing otherwise, after the date of the **Change in Control**, this **Policy** will cover only **Claims** arising from **Professional Services** performed, **Wrongful Acts**, offenses, or **Occurrences** that took place prior to the **Change in Control**.

12.3. The **Parent Organization** will have the right, upon payment of an additional premium calculated at the percentage of the total premium for this **Policy** set forth in Item 6 of the DECLARATIONS, to an extension of the coverage granted by this **Policy** with respect to any **Claim** first made during the **Run-Off Period**, as set forth in Item 6 of the DECLARATIONS, but only with respect to any **Wrongful Act** committed before the effective date of the **Change in Control** (herein defined as "Run-Off Coverage"); provided, however, such additional premium will be reduced by the amount of the unearned premium from the date of the **Change in Control** or the date of notice of the election of the Run-Off Coverage, whichever is later, through the expiration date set forth in Item 2 of the DECLARATIONS.

12.4. The **Parent Organization** will have the right to elect only one of the periods designated in Item 6 of the DECLARATIONS. The election must be made prior to the expiration of the **Policy Period**. The right to purchase a **Run-Off Period** will terminate on the expiration of the **Policy Period**.

12.5. If a **Run-Off Period** is elected and purchased:

12.5.1. 7. CANCELLATION, is deleted in its entirety and neither **You** nor **We** may cancel this **Policy** or any Coverage Part thereof;

12.5.2. 11. DISCOVERY PERIOD, is deleted in its entirety; and

12.5.3. The exercise of the **Run-Off Period** will not in any way increase or reinstate the limit of **Our** liability under any Coverage Part.

12.6. This section does not apply to the Crime Coverage Part nor the Miscellaneous Professional Liability Coverage Part.

13. TERRITORY

13.1. This policy will apply to **Wrongful Acts** taking place, **Claims** made, or losses that take place anywhere in the world.

13.2. With respect to **Claims** brought outside the United States, its territories or possessions, or Canada, this policy does not apply:

13.2.1. To any **Claim** brought in any country in which the United States (or any of its departments, agencies, or subdivisions) administers or enforces economic or trade sanction laws; or

13.2.2. If it would otherwise be in violation of the laws of the United States.

14. ASSISTANCE, COOPERATION AND SUBROGATION

14.1. **You** agree to provide **Us** with such information, assistance, and cooperation as **We** may reasonably request, and that **You** will not take any action which in any way increases **Our** exposure under this **Policy**. In the event of any payments under this **Policy**, **We** will be subrogated to the extent of such payment to all **Your** rights of recovery against any person or entity. **You** will execute all papers required and will do everything that may be necessary to secure and preserve such rights, including the execution of such documents as are necessary to enable **Us** effectively to bring suit or otherwise pursue subrogation in the **Your** name, and will provide all other assistance and cooperation which **We** may reasonably require. **We** hereby waive **Our** subrogation rights against **Your** client to the extent that **You** had, prior to a **Claim** or a **Wrongful Act** reasonably expected to give rise to a **Claim**, entered into a written agreement to waive such rights. In no event, however, will **We** exercise **Our** right of subrogation against **You** under this **Policy**, unless **You** have:

14.1.1. committed a dishonest, fraudulent, or criminal act, if established by a final, non-appealable adjudication, guilty verdict or guilty plea or other written admission under oath by such **Insureds**; or

14.1.2. obtained any profit or advantage to which **You** were not legally entitled if established by a final non-appealable adjudication, guilty verdict or guilty plea or other written admission under oath by such **Insureds**.

14.2. Regarding the **GL Coverage Parts**:

14.2.1. **We** may examine and audit **Your** books and records as they relate to this **Policy** at any time during the **Policy Period** and up to three years afterward.

14.2.2. **We** have the right to:

14.2.2.1. make inspections and surveys at any time;

14.2.2.2. give **You** reports on the conditions **We** find; and

14.2.2.3. recommend changes.

14.2.3. **We** are not obligated to make any inspections, surveys, reports, or recommendations and any such actions **We** do undertake relate only to insurability and the premiums to be charged. **We** do not make

safety inspections. **We** do not undertake to perform the duty of any person or organization to provide for the health or safety of workers or the public. And **We** do not warrant that conditions:

14.2.3.1. are safe or healthful; or

14.2.3.2. comply with laws, regulations, codes, or standards.

14.2.4. Paragraphs 14.2.2. and 14.2.3. of this condition apply not only to **Us**, but also to any rating, advisory, rate service or similar organization which makes insurance inspections, surveys, reports, or recommendations.

14.2.5. Paragraph 14.2.3. of this condition does not apply to any inspections, surveys, reports, or recommendations **We** may make relative to certification, under state or municipal statutes, ordinances, or regulations, of boilers, pressure vessels or elevators.

15. ACTION AGAINST US, ALTERATION AND ASSIGNMENT

Except as provided in 16. ALTERNATIVE DISPUTE RESOLUTION, no action will lie against **Us** unless, as a condition precedent thereto, there has been compliance with all the terms of this **Policy**. No person or organization will have any right under this **Policy** to join **Us** as a party to any action against **You** to determine **Our** liability, nor will **We** be impleaded by **You** or **Your** legal representative. No change in, modification of, or assignment of interest under this **Policy** will be effective except when made by a written endorsement to this **Policy** which is signed by **Our** authorized representative.

16. ALTERNATIVE DISPUTE RESOLUTION

16.1. **You** and **We** will submit any dispute or controversy arising out of or relating to this **Policy** or the breach, termination, or invalidity thereof to the alternative dispute resolution ("ADR") process described in this section.

16.2. Either **You** or **We** may elect the type of ADR process discussed below; provided, however, that **You** will have the right to reject the choice by **Us** of the type of ADR process at any time prior to its commencement, in which case **Your** choice of ADR process will control.

16.3. There will be two choices of ADR process: (1) non-binding mediation administered by any mediation facility to which **We** and **You** mutually agree, in which **You** and **We** will try in good faith to settle the dispute by mediation in accordance with the then prevailing commercial mediation rules of the mediation facility; or (2) arbitration submitted to any arbitration facility to which **You** and **We** mutually agree, in which the arbitration panel will consist of three disinterested individuals. In either mediation or arbitration, the mediator or arbitrators will have knowledge of the legal, corporate management, and insurance issues relevant to the matters in dispute. In the event of arbitration, the decision of the arbitrators will be final and binding and provided to both parties, and the award of the arbitrators will not include attorneys' fees or other costs. In the event of mediation, either party will have the right to commence arbitration in accordance with this section; provided, however, that no such arbitration will be commenced until at least sixty (60) days after the date the mediation will be deemed concluded or terminated. In all events, each party will share equally the expenses of the ADR process. Either ADR process may be commenced in New York, New York or in the state indicated in Item 1 of the DECLARATIONS as the principal address of the **Parent Organization**. The **Parent Organization** will act on **Your** behalf in connection with any ADR process under this section.

17. STATE AMENDATORY INCONSISTENT

It is agreed that in the event there is an inconsistency between a state amendatory endorsement attached to this **Policy** and any term or condition of this **Policy**, then where permitted by law, **We** will apply those terms and conditions of either the amendatory endorsement or the **Policy** which are more favorable to **You**.

18. CHANGES

This **Policy** contains all the agreements between **You** and **Us** concerning the insurance afforded. The **Parent Organization** is authorized to make changes in the terms of this policy with **Our** consent. This **Policy's** terms can be amended or waived only by endorsement issued by **Us** and made a part of this **Policy**.

19. OTHER INSURANCE

Any payment due under this **Policy** is specifically excess of and will not contribute with any other valid and collectible insurance unless such other insurance is written specifically as excess insurance over this **Policy** or Coverage Part.

20. **TRANSFER OF YOUR RIGHTS**

Your rights and duties under this policy may not be transferred without **Our** written consent except in the case of death of an individual named insured. If **You** die, **Your** rights and duties will be transferred to **Your** legal representative but only while acting within the scope of duties as **Your** legal representative. Until **Your** legal representative is appointed, anyone having proper temporary custody of **Your** property will have **Your** rights and duties but only with respect to that property.

21. **DEFINITIONS**

Whenever used in this **Policy**, the terms that appear in **boldface** type will have the meanings set forth in this section of the GENERAL TERMS AND CONDITIONS. If a term also appears in **boldface** type in a particular Coverage Part and is defined in that Coverage Part, however, that definition will apply for purposes of that Coverage Part. Terms that appear in **boldface** in the GENERAL TERMS AND CONDITIONS but are not defined in this section and are defined in other Coverage Parts of the **Policy** will have the meanings ascribed to them in those Coverage Parts.

- 21.1. **Application** means all applications, including any attachments thereto, and all other information and materials submitted by **You** or on **Your** behalf to **Us** in connection with **Our** underwriting this **Policy** or any policy of which this **Policy** is a renewal or replacement. All such applications, attachments, information, materials, and documents are deemed attached to and incorporated into this **Policy**.
- 21.2. **Change in Control** means:
 - 21.2.1. the acquisition by any person or entity of more than fifty percent (50%) of the voting rights of the **Parent Organization** representing the present right to vote for the election of directors or trustees; or
 - 21.2.2. the merger or consolidation of the **Parent Organization** into another entity such that the **Parent Organization** is not the surviving entity.
- 21.3. **Claim** means **Claim** as defined in each Coverage Part.
- 21.4. **Discovery Period** means one of the periods described in Item 5 of the DECLARATIONS which is elected and purchased pursuant to 11. DISCOVERY PERIOD.
- 21.5. **Domestic Partner** means any natural person qualifying as a domestic partner under the provisions of any applicable federal, state, or local law or under the provisions of any formal program established by the **Organization**.
- 21.6. **Executive** means **Your** Chief Executive Officer, Chief Financial Officer, Chief Operating Officer, Risk Manager, or General Counsel (or equivalent position).
- 21.7. **Extended Period** means the **Discovery Period** or **Run-Off Period** if such provision is elected and purchased pursuant 11. DISCOVERY PERIOD or 12. RUN-OFF PERIOD, respectively.
- 21.8. **GL Coverage Part** means the General Liability Coverage Part.
- 21.9. **Hazardous Properties** means radioactive, toxic, or explosive properties.
- 21.10. **Liability Coverage Parts** means the Non-Profit Directors and Officers Liability Coverage Part, Private Company Directors and Officers Liability Coverage Part, Employment Practices Liability Coverage Part, Fiduciary Liability Coverage Part, Professional Liability Coverage Part, and General Liability Coverage Part if included in Item 3 of the DECLARATIONS.
- 21.11. **Loss** means **Loss** as defined in each Coverage Part.
- 21.12. **Non-Liability Coverage Parts** means the Crime Coverage Part if included in Item 3 of the DECLARATIONS.
- 21.13. **Nuclear Facility** means:

- 21.13.1. any **Nuclear Reactor**;
- 21.13.2. any equipment or device designed or used for:
 - 21.13.2.1. separating isotopes of uranium or plutonium;
 - 21.13.2.2. processing or utilizing **Spent Fuel**; or
 - 21.13.2.3. handling, processing, or packing **Waste**;
 - 21.13.2.4. any equipment or device used for the processing, fabricating, or alloying of **Special Nuclear Material**, if at any time the total amount of such material in **Your** custody at the premises where such equipment or device is located consists of or contains more than 25 grams of plutonium or uranium 233 or any combination thereof, or more than 250 grams of uranium 235; or
 - 21.13.2.5. any structure, basin, excavation, premises, or place prepared or used for the storage or disposal of **Waste**.

Nuclear Facility includes the site on which any of the foregoing is located, all operations conducted on such site, and all premises used for such operations;

With respect to injury to or destruction of property, "injury" or "destruction" includes all forms of radioactive contamination of property.

- 21.14. **Nuclear Material** means **Source Material**, **Special Nuclear Material**, or **Byproduct Material**.
- 21.15. **Organization** means:
 - 21.15.1. the **Parent Organization**;
 - 21.15.2. any **Subsidiary**; and
 - 21.15.3. any such organization as a debtor-in-possession or the bankruptcy estate of such entity under United States bankruptcy law or an equivalent status under the law of any other jurisdiction; or
- 21.16. **Parent Organization** means the entity first named in Item 1 of the DECLARATIONS.
- 21.17. **Policy** means, collectively, the DECLARATIONS, the **Application**, policy forms, Coverage Part(s) and any endorsements.
- 21.18. **Policy Period** means the period from the effective date and hour of the inception of this **Policy** to the **Policy** expiration date and hour as set forth in Item 2 of the DECLARATIONS, or its earlier cancellation date and hour, if any.
- 21.19. **Pollutants** means any substance exhibiting any hazardous characteristics as defined by, or identified on, a list of hazardous substances issued by the United States Environmental Protection Agency or any federal, state, county, municipal or local counterpart thereof or any foreign equivalent. Such substances will include, without limitation, solids, liquids, gaseous, biological, bacterial, or thermal irritants, contaminants or smoke, vapor, soot, fumes, acids, alkalis, chemicals, or waste materials (including materials to be reconditioned, recycled, or reclaimed). Pollutants will also mean any other air emission or particulate, odor, wastewater, oil or oil products, infectious or medical waste, asbestos or asbestos products, noise, fungus (including mold or mildew and any mycotoxins, spores, scents or byproducts produced or released by fungi, but does not include any fungi intended by the Insured for consumption) and electric or magnetic or electromagnetic field;
- 21.20. **Run-Off Period** means one of the periods described in Item 6 of the DECLARATIONS, which is elected and purchased pursuant to 12. RUN-OFF PERIOD.
- 21.21. **Source Material**, **Special Nuclear Material**, **Nuclear Reactor**, and **Byproduct Material** have the meanings given them in the Atomic Energy Act of 1954 as amended.
- 21.22. **Spent Fuel** means any fuel element or fuel component, solid or liquid, which has been used or exposed to radiation in a **Nuclear Reactor**.

- 21.23. **Subsidiary** means any entity of which more than fifty percent (50%) of the outstanding securities or voting rights representing the present right to vote for the election of such entity's directors or managers are owned or controlled by the **Parent Organization**, directly or indirectly, if such entity:
- 21.23.1. was owned on or prior to the inception date of this **Policy**; or
 - 21.23.2. becomes so owned after the inception date of this **Policy**; and
- 21.24. any joint venture entity in which the **Parent Organization**, or an entity described in a. above, has an exact fifty percent (50%) ownership of the interests of such joint venture entity and where, pursuant to a written joint venture agreement, the **Parent Organization** or entity described in a. above solely controls the management and operations of such joint venture entity.
- 21.25. **Waste** means any waste material:
- 21.25.1. containing **Byproduct Material**; and
 - 21.25.2. resulting from the operation by any person or organization of any **Nuclear Facility** included in paragraph a or b of the definition of **Nuclear Facility**.
- 21.26. **We, Us, and Our** means the insurance company providing this insurance.
- 21.27. **You, Your, or Insured** means any individual or entity expressly described as an **Insured** in any Coverage Part **You** have purchased.

All definitions will apply equally to the singular and plural forms of the respective words.

22. **HEADINGS AND TITLES**

Throughout this **Policy** and all Coverage Parts, titles and headings are inserted solely for convenience of references and will not be deemed to limit, expand, or otherwise affect the provisions to which they relate.

ATEGRITY TOTAL PROTECTION

EMPLOYMENT PRACTICES LIABILITY COVERAGE PART

VARIOUS PROVISIONS IN THIS POLICY RESTRICT COVERAGE. READ THE ENTIRE POLICY CAREFULLY TO DETERMINE RIGHTS, DUTIES AND WHAT IS AND IS NOT COVERED.

In consideration of the payment of premium, in reliance on the **Application** and subject to the DECLARATIONS, and terms and conditions of this **Policy**, we agree as follows:

1. INSURING AGREEMENTS

A. EMPLOYMENT PRACTICES

We will pay **Loss** which **You** have become legally obligated to pay by reason of an **Employment Practices Claim** first made against **You** during the **Policy Period** or, if elected, the **Extended Period**, and reported to **Us** pursuant to 8. NOTIFICATION OF CLAIMS of the GENERAL TERMS AND CONDITIONS, for an **Employment Practices Wrongful Act** taking place prior to the end of the **Policy Period**.

2. COVERAGE ENHANCEMENTS

B. ADDITIONAL DEFENSE LIMIT

We will pay, in the aggregate, up to the Limit of Liability for this Coverage Enhancement shown in Item 3 of the DECLARATIONS, for **Costs, Charges and Expenses** from a **Claim** first made against **You** during the **Policy Period**, or, if applicable, the **Extended Period**, and reported to **Us** pursuant to 8. NOTIFICATION OF CLAIMS of the GENERAL TERMS AND CONDITIONS, for any **Wrongful Act** taking place prior to the end of the **Policy Period**.

C. EMPLOYEE PRIVACY SUBLIMIT

We will pay, in the aggregate, up to the Limit of Liability for this Coverage Enhancement shown in Item 3 of the DECLARATIONS, **Employee Privacy Loss** which **You** have become legally obligated to pay by reason of an **Employee Privacy Claim** first made during the **Policy Period** or, if elected, the **Extended Period**, and reported to **Us** pursuant to SECTION 8. – NOTIFICATION OF CLAIMS of the GENERAL TERMS AND CONDITIONS. Any amount **We** pay under this Coverage Enhancement will be part of, not in addition to, the Coverage Part Limit of Liability.

D. IMMIGRATION DEFENSE SUBLIMIT

We will pay, in the aggregate, up to the Limit of Liability for this Coverage Enhancement shown in Item 3 of the DECLARATIONS, **Costs, Charges and Expenses** incurred by **You** resulting from an **Immigration Proceeding** commenced during the **Policy Period** or, if elected, the **Extended Period**, and reported to **Us** pursuant to SECTION 8. – NOTIFICATION OF CLAIMS of the GENERAL TERMS AND CONDITIONS. Any amount **We** pay under this Coverage Enhancement will be part of, not in addition to, the Coverage Part Limit of Liability.

E. THIRD-PARTY SUBLIMIT

We will pay, in the aggregate, up to the Limit of Liability for this Coverage Enhancement shown in Item 3 of the DECLARATIONS, **Loss** which **You** have become legally obligated to pay by reason of a **Third-Party Claim** first made against **You** during the **Policy Period** or, if elected, the **Extended Period**, and reported to **Us** pursuant to 8. NOTIFICATION OF CLAIMS of the GENERAL TERMS AND CONDITIONS, for a **Third-Party Wrongful Act** taking place prior to the end of the **Policy Period**. Any amount **We** pay under this Coverage Enhancement will be part of, not in addition to, the Coverage Part Limit of Liability.

F. WAGE AND HOUR DEFENSE SUBLIMIT

We will pay, in the aggregate, up to the Limit of Liability for this Coverage Enhancement shown in Item 3 of the DECLARATIONS, **Costs, Charges and Expenses** resulting from a **Claim** for a **Wage and Hour Violation** first made against **You** during the **Policy Period** or, if elected, the **Extended Period**, and reported to **Us** pursuant to 8. NOTIFICATION OF CLAIMS of the GENERAL TERMS AND CONDITIONS, for a **Wrongful Act** taking place prior to the end of the **Policy Period**. If a **Claim** also includes allegations other than **Wage and Hour Violations**, **We** will only pay up to the Limit of Liability for this Coverage Enhancement for all **Costs, Charges and Expenses** that are attributable to the **Wage and Hour Violation**. Any amount **We** pay under this Coverage Enhancement will be part of, not in addition to, the Coverage Part Limit of Liability.

G. WORKPLACE VIOLENCE SUBLIMIT

We will pay, in the aggregate, up to the Limit of Liability for this Coverage Enhancement shown in Item 3 of the DECLARATIONS, for **Workplace Violence Expenses** incurred by the **Organization** directly resulting from a **Workplace Violence Event** that takes place, in whole or in part, during the **Policy Period**. Any amount **We** pay under this Coverage Enhancement will be part of, not in addition to, the Coverage Part Limit of Liability. Coverage provided by this Coverage Enhancement is specifically excess of, and will not contribute with, any other valid and collectible insurance available to **You** for any loss which may be covered under both policies.

3. **EXCLUSIONS**

We will not be liable for **Loss** under this Coverage Part on account of any **Claim**:

- 3.1. **Acts After a Change in Control:** alleging, based upon, arising out of, attributable to, directly or indirectly resulting from, in consequence of, or in any way involving any **Wrongful Act** actually or allegedly committed after a **Change in Control**;
- 3.2. **Bodily Injury / Property Damage:** for actual or alleged bodily injury, sickness, disease or death of any person, or damage to or destruction of any tangible or intangible property including loss of use thereof, whether or not such property is physically injured; provided, however, this exclusion will not apply to mental anguish, emotional distress, or humiliation;
- 3.3. **Compensation Violations:** alleging, based upon, arising out of, attributable to, directly or indirectly resulting from, in consequence of, or in any way involving, any actual or alleged responsibility, obligation or duty of any Insured pursuant to any workers compensation, unemployment insurance, social security, disability benefits or pension benefits or similar law; provided, however, this exclusion will not apply to any such **Claim** alleging **Retaliation**;
- 3.4. **Employee Retirement Income Security Act:** for any actual or alleged violation of the responsibilities, obligations or duties imposed by the Employee Retirement Income Security Act of 1974, the National Labor Relations Act, the Worker Adjustment and Retraining Notification Act, the Consolidated Omnibus Budget Reconciliation Act of 1985, the Occupational Safety and Health Act, the Patient Protection and Affordable Care Act, the Fair Labor Standards Act, all as amended, or any rules or regulations promulgated thereunder, or similar provisions of any common or statutory federal, state or local law; provided, however, this exclusion does not apply to any such **Claim** alleging violations of the Equal Pay Act or **Retaliation**;
- 3.5. **Other Coverage Parts:** for that portion of **Loss** which is covered under any other Coverage of this **Policy**;
- 3.6. **Pending or Prior:** alleging, based upon, arising out of, attributable to, directly or indirectly resulting from, in consequence of, or in any way involving:
 - 3.6.1. any prior or pending litigation or administrative or regulatory proceeding, demand letter or formal or informal governmental investigation or inquiry, including without limitation any investigation by the United States Department of Labor or the United States Equal Employment Opportunity Commission, filed or pending on or before the **Continuity Date**;

3.6.2. any fact, circumstance, situation, transaction, or event underlying or having been alleged in litigation or administrative proceeding, demand letter or formal or informal governmental investigation or inquiry, including any investigation by the United States Department of Labor or the United States Equal Employment Opportunity Commission, filed or pending on or before the **Continuity Date**;

3.7. **Prior Notice:** alleging, based upon, arising out of, attributable to, directly or indirectly resulting from, in consequence of, or in any way involving:

3.7.1. any **Wrongful Act**, fact, circumstance, or situation which has been the subject of any notice given under any other policy of which this **Policy** is a renewal or replacement or which it succeeds in time; or

3.7.2. any other **Wrongful Act** whenever occurring which, together with a **Wrongful Act**, which has been the subject of such notice, would constitute **Interrelated Wrongful Acts**; or

3.8. **Wage and Hour:** alleging, based upon, arising out of, attributable to, directly or indirectly resulting from, in consequence of, or in any way involving any actual or alleged improper or inaccurate payroll deductions, failure to itemize, or inaccurate wage statements, unpaid wages or overtime pay (other than tort-based back pay or front pay damages for non-conversion related torts), or failure to provide or enforce legally required meal or rest breaks; provided, however, this exclusion will not apply to Coverage Enhancement C. Wage and Hour Defense or any such **Claim** alleging **Retaliation**.

No **Wrongful Act** of one or more **Insureds** will be imputed to any other **Insureds** for the purpose of determining the applicability of any of the above exclusions.

4. **LIMITS OF INSURANCE AND RETENTIONS**

This section is intentionally left blank, conditions regarding Limits of Insurance and Retentions are found in the GENERAL TERMS AND CONDITIONS.

5. **WHO IS AN INSURED**

For purposes of this Coverage Part, **You, Your**, or **Insured** means the **Organization** and **Insured Person**, as defined below and in the GENERAL TERMS AND CONDITIONS:

5.1. **Insured Persons** means all persons who were, now are, or will become:

5.1.1. a director, officer, trustee, volunteer, or committee member of the **Organization**;

5.1.2. any Employee;

5.1.3. any person contracted by the **Organization**, but only while acting in their capacity as such if the **Organization** provides indemnification in the same manner as provided to the **Insured's** own employees; and

5.1.4. the functional equivalent of a director, officer, trustee, volunteer or committee member or **Employee** in the event the **Organization** incorporated or domiciled outside the United States.

6. **OTHER INSURANCE**

This Coverage Part will be primary with respect to, and will not contribute with, any other valid and collectible insurance, except an **Employment Practices Claim** made against an **Employee** who is leased, temporary or an independent contractor where this Coverage Part will be specifically excess of, and will not contribute with, such other insurance unless such insurance is specifically stated to be excess over this **Policy** or Coverage Part.

7. **DEFINITIONS**

7.1. **Business Income** means:

7.1.1. the sum of:

- 7.1.1.1. net profit before taxes that would have been earned by **You** had no **Workplace Violence Event** occurred;
- 7.1.1.2. the actual cost of continuing, on a curtailed basis, activities which are necessary for the **Organization** to resume operations with substantially the same quality of service which existed immediately before the **Workplace Violence Event**; and
- 7.1.1.3. reasonable expenses which would not have been incurred except for such **Workplace Violence Event** and which were incurred by the **Organization** for the sole purpose of reducing loss described in 7.1.1.1. and 7.1.1.2. above;
- 7.1.2. less the sum of:
 - 7.1.2.1. all recoveries, insurance, suretyship, and other indemnity which would cover loss described in 7.1.1. above in the absence of this coverage; and
 - 7.1.2.2. the amount by which the **Organization** fails to reduce loss described in 7.1.1. above through any reasonable measures.
- 7.2. **Claim** means any:
 - 7.2.1. **Employment Practices Claim**; or
 - 7.2.2. **Third-Party Claim**.
- 7.3. **Continuity Date** means the Continuity Date set forth in Item 3 of the DECLARATIONS relating to this Coverage Part.
- 7.4. **Costs, Charges and Expenses** means reasonable and necessary legal costs, charges, fees and expenses incurred by **You** in defending **Claims** and the premium for appeal, attachment or similar bonds arising out of covered judgments, but with no obligation to furnish such bonds and only for the amount of such judgment that is up to the applicable Limit of Liability. **Costs, Charges and Expenses** do not include salaries, wages, fees, overhead or benefit expenses of or associated with officers or employees of the **Organization**.
- 7.5. **Employee** means any person who was, now is or will become:
 - 7.5.1. a full-time or part-time employee of the **Organization**, including interns, voluntary, seasonal, and temporary employees;
 - 7.5.2. any individual who applies for employment with the **Organization**; and
 - 7.5.3. any natural person who is a leased employee or is contracted to perform work for the **Organization**, or is an independent contractor for the **Organization**, but only to the extent such individual performs work or services for or on behalf of the **Organization**.
- 7.6. **Employee Privacy Claim** means:
 - 7.6.1. a written demand, civil proceeding, or arbitration proceeding against **You** for monetary damages or non-monetary or injunctive relief;
 - 7.6.2. a civil, administrative, or regulatory proceeding, or a formal governmental investigation against **You** commenced by the filing of a notice of charges, investigative order, or similar document; or
 - 7.6.3. a written request to toll or waive any statute of limitations
 brought by or on behalf of an **Employee** in their capacity as such and solely alleging a **Privacy Wrongful Act**. **Employee Privacy Claim** also includes:
 - 7.6.4. the unauthorized acquisition, access, use, physical taking, identity theft, mysterious disappearance, release, distribution, or disclosure of an **Employee's** personal information;
- 7.7. **Employee Privacy Loss** means:

- 7.7.1. any reasonable and necessary cost or expense incurred by the **Organization** to notify any **Employee** of a personal information breach as required under any federal, state, or local statutory or common law relating solely to **Employee** personal information, or any rules or regulations promulgated thereunder; or
- 7.7.2. the cost to notify and monitor the credit reports of any **Employee** who has been the subject of an **Employee Personal Information Breach** for the length of time as set forth under any federal, state, or local statutory or common law relating solely to **Employee** personal information, or any rules or regulations promulgated thereunder.

7.8. **Employment Practices Claim** means:

- 7.8.1. a written demand against **You** for damages or other relief;
- 7.8.2. a civil, judicial, administrative, regulatory or arbitration proceeding or a formal governmental investigation against an Insured seeking damages or other relief, commenced by the service of a complaint or similar pleading, including any appeal therefrom;
- 7.8.3. a civil proceeding against an Insured before the Equal Employment Opportunity Commission or any similar federal, state, or local governmental body, commenced by the filing of a notice of charges, investigative order, or similar document;
- 7.8.4. a criminal proceeding brought for an **Employment Practices Wrongful Act** in a court outside of the United States against **You**, commenced by a return of an indictment or similar document, or receipt or filing of a notice of charges, brought by or on behalf of an **Employee** in their capacity as such; or
- 7.8.5. **Employee Privacy Claim** when covered under the Employee Privacy Sublimit Coverage Enhancement.

Employment Practices Claim does not include a labor or grievance proceeding, which is pursuant to a collective bargaining agreement.

7.9. **Employment Practices Wrongful Act** means any actual or alleged:

- 7.9.1. violation of any common or statutory federal, state, or local law prohibiting any kind of employment-related discrimination, including, but not limited to, violations based on race, color, national origin, creed, religion, age, sex, gender, marital status, pregnancy, disability, HIV status, sexual orientation or preference, or any other protected classes as determined by applicable law, through whatever means, including, but not limited to, email, instant messaging, social networking services, or blogs, regardless of whether the activity takes place on or off work premises or during or after normal work hours;
- 7.9.2. harassment, including any type of sexual or gender harassment as well as racial, religious, sexual orientation, pregnancy, disability, age, or national origin-based harassment, or unlawful workplace harassment, including workplace harassment by any non-employee through any means, including, but not limited to, email, instant messaging, social networking services, or blogs, regardless of whether the activity takes place on or off work premises or during or after normal work hours;
- 7.9.3. abusive or hostile work environment;
- 7.9.4. wrongful discharge or termination of employment, whether actual or constructive;
- 7.9.5. breach of an actual or implied employment contract;
- 7.9.6. wrongful deprivation of a career opportunity, wrongful failure, or refusal to employ or promote, or wrongful demotion;
- 7.9.7. employment-related defamation, libel, slander, disparagement, false imprisonment, misrepresentation, malicious prosecution, or invasion of privacy;
- 7.9.8. wrongful failure or refusal to adopt or enforce workplace or employment practices, policies, or procedures, solely as respects employment-related discrimination or harassment;

- 7.9.9. wrongful discipline;
- 7.9.10. employment-related wrongful infliction of emotional distress, mental anguish, or humiliation;
- 7.9.11. **Retaliation**;
- 7.9.12. **Privacy Wrongful Act** when covered under the Employee Privacy Sublimit Coverage Enhancement;
- 7.9.13. negligent evaluation; or
- 7.9.14. negligent hiring, retention, training, or supervision; infliction of emotional distress or mental anguish; failure to provide or enforce adequate or consistent organizational practices and procedures; violation of an individual's civil rights; or workplace or cyber bullying in connection with a. through l. above, but only if employment-related and claimed by or on behalf of any **Employee** and only if committed or allegedly committed by any **You** in **Your** capacity as such.
- 7.10. **Immigration Proceeding** means a criminal investigation of any of the **Insured Persons** or **Organization** by a governmental agency solely with respect to a violation of the Immigration Reform and Control Act of 1986, as amended, or any similar provisions of any federal, state, or local law relating to the hiring or harboring of undocumented immigrants, or any rules or regulations promulgated under such laws.
- 7.11. **Interrelated Wrongful Acts** means all **Wrongful Acts** that have as a common nexus any fact, circumstance, situation, event, transaction, cause or series of facts, circumstances, situations, events, transactions or causes.
- 7.12. **Loss** means the damages, judgments, settlements, pre-judgment, or post-judgment interest awarded by a court, front pay and back pay, **Employee Privacy Loss** (when covered under the Employee Privacy Sublimit Coverage Enhancement), and **Costs, Charges and Expenses** incurred by **You**.
Loss does not include:
 - 7.12.1. taxes, fines, or penalties;
 - 7.12.2. matters uninsurable under the laws pursuant to which this **Policy** is construed;
 - 7.12.3. punitive or exemplary damages, liquidated damages awarded by a court pursuant to a violation of the Equal Pay Act, the Age Discrimination in Employment Act or the Family Medical Leave Act, all as amended, or any rules or regulations promulgated thereunder, or similar provisions of any common or statutory federal, state or local law, or the multiple portion of any multiplied damage award, except to the extent that such punitive, exemplary, or liquidated damages or the multiple portion of any multiplied damage award are insurable under the internal laws of any jurisdiction which most favors coverage for such damages and which has a substantial relationship to the **You, Us**, this **Policy** or the **Claim** giving rise to such damages;
 - 7.12.4. the cost of any remedial, preventative, or other non-monetary relief, including without limitation any costs associated with compliance with any such relief of any kind or nature imposed by any judgment, settlement, or governmental authority;
 - 7.12.5. amounts owed under any employment contract, partnership, stock or other ownership agreement, or any other type of contract;
 - 7.12.6. disability, social security, workers compensation, medical insurance, retirement or pension benefit payments, or settlement amounts representing benefit payments;
 - 7.12.7. the costs to modify or adapt any building or property to be accessible or accommodating, or to be more accessible or accommodating, to any disabled person;
 - 7.12.8. the cost of creating or reinstating employment;
 - 7.12.9. any amount owed as wages to any **Employee**, other than front pay or back pay; or
 - 7.12.10. any amount for which **You** are not financially liable or legally obligated to pay.

- 7.13. **Privacy Wrongful Act** means the failure of the **Organization** to timely disclose an incident or event or comply with any federal, state, or local statutory or common law relating solely to **Employee** personal information, or any rules or regulations promulgated thereunder.
- 7.14. **Retaliation** means **Your** actual or alleged response to:
- 7.14.1. the disclosure or threat of disclosure by an **Employee** to a superior or to any governmental agency of **Your** act where such act is alleged to be a violation of any federal, state local or foreign law, whether common or statutory, or any rule or regulation promulgated thereunder;
 - 7.14.2. the actual or attempted exercise by an **Employee** of any right that such **Employee** has under law, including rights under any worker's compensation law, the Family and Medical Leave Act, the Americans with Disabilities Act or any other law relating to employee rights;
 - 7.14.3. the filing of any **Claim** under the Federal False Claims Act or any similar federal, state, local or foreign "whistleblower" law or provision of any law; or
 - 7.14.4. any legally protected **Employee** work stoppage or slowdown.
- 7.15. **Third-Party** means any natural person who is a customer, vendor, service provider, client, or other business invitee of the **Organization**; provided, however, **Third-Party** will not include any **Employee**.
- 7.16. **Third-Party Claim** means:
- 7.16.1. any written demand for damages or other relief against **You**;
 - 7.16.2. a civil judicial, administrative or arbitration proceeding against **You** seeking damages or other relief, including any appeal therefrom; or
 - 7.16.3. a criminal proceeding brought for an **Employment Practices Wrongful Act** in a court outside of the United States against **You**, commenced by a return of an indictment or similar document, or receipt or filing of a notice of charges;
- brought by or on behalf of a **Third-Party** in their capacity as such.
- 7.17. **Third-Party Wrongful Act** means any actual or alleged:
- 7.17.1. harassment of a **Third-Party**, including but not limited to any type of sexual or gender harassment as well as racial, religious, sexual orientation, pregnancy, disability, age, or national origin-based harassment; or
 - 7.17.2. discrimination against a **Third-Party**, including but not limited to any such discrimination on account of race, color, religion, age, disability, or national origin;
- regardless of whether the activity takes place on or off work premises or during or after normal work hours.
- 7.18. **Workplace Violence Event** means:
- 7.18.1. any threat or conduct which demonstrates intent to inflict bodily harm or damage, destroy, or contaminate the **Organization's** tangible property; and
 - 7.18.2. any act of actual or potential deadly force involving the use of a weapon which results in bodily injury or death to any individual while on the **Organization's** premises.
- 7.19. **Workplace Violence Expense** means reasonable fees, costs, and expenses incurred by the **Organization** after **You** have reported a **Workplace Violence Event** to **Us** and received our consent for:
- 7.19.1. independent threat management, security consulting services, and security guard services within 90 days of the **Workplace Violence Event**;
 - 7.19.2. medical, mental health, dental, and cosmetic services, including the cost of plastic surgery, within 36 months of a **Workplace Violence Event**;

- 7.19.3. rest and rehabilitation, including meals and recreation, taken within 90 days of a **Workplace Violence Event** incurred by an individual who has suffered bodily injury resulting from the **Workplace Violence Event**;
- 7.19.4. crisis mental health counseling services within 90 days of the **Workplace Violence Event** for an individual who requests such services;
- 7.19.5. independent public relations consultants, crisis management consultants, or interpreter costs within 90 days of the **Workplace Violence Event**;
- 7.19.6. personal financial loss incurred by an individual within 90 days of a **Workplace Violence Event** due to their physical inability to attend to personal financial matters;
- 7.19.7. the gross salary, including bonuses and allowances, for a temporary replacement of any individual who has suffered bodily injury or death, incurred by **You** within 90 days of the **Workplace Violence Event**, provided the amounts do not exceed the individuals' total compensation;
- 7.19.8. independent computer forensic analyst costs within 90 days of the **Workplace Violence Event**;
- 7.19.9. up to \$100,000 per deceased **Employee** as a result of the death or clinical death as a direct result of the **Workplace Violence Event**; however, **We** will have no obligation to pay this amount for an **Employee** who committed the **Workplace Violence Event**;
- 7.19.10. the actual lost **Business Income** sustained by the **Organization** due to the actual suspension of operations or an order by a civil or military authority prohibiting access to the **Organization's** premises, in whole or in part, up to 90 days after the **Workplace Violence Event**; and
- 7.19.11. any other costs with **Our** advance written consent.

7.20. **Wrongful Act** means:

- 7.20.1. **Employment Practices Wrongful Act**;
- 7.20.2. **Third-Party Wrongful Act** when covered under the Third-Party Sublimit Coverage Enhancement; or
- 7.20.3. **Privacy Wrongful Act** when covered under the Employee Privacy Sublimit Coverage Enhancement

Policy Number:

Endorsement Effective Date:

01-B-ML-P80000410-01

November 1, 2024 – November 1, 2025

12:01 A.M. local time at Principal Address

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT
CAREFULLY.

SERVICE OF SUIT CLAUSE

This endorsement modifies insurance provided under the following forms indicated with an "X":

FORMS AND COVERAGE PARTS

☒ GENERAL TERMS AND CONDITIONS

SCHEDULE

Chris Schenk
Ategrity Specialty Insurance Company
14000 N Pima Rd, Suite 200
Scottsdale, Arizona 85260

With respect to the Forms or Coverage Part(s) indicated by an "X" above, the following applies:

It is agreed that in the event of the failure of the Company to pay any amount claimed to be due under this policy, the Company at the request of the Insured (or reinsured), will submit to the jurisdiction of any court of competent jurisdiction within the United States of America and will comply with all requirements necessary to give the Court jurisdiction. All matters which arise will be determined in accordance with the law and practice of the Court. In a suit instituted against any one of them under this contract, the Company agrees to abide by the final decision of the Court or of any Appellate Court in the event of an appeal.

Pursuant to any statute of any state, territory or district of the United States of America which makes a provision, the Company will designate the Superintendent, Commissioner or Director of Insurance or other officer specified for that purpose in the statute, or his successor or successors in office, as their true and lawful attorney upon whom may be served any lawful process in any action, suit, or proceeding instituted by or on behalf of the Insured (or reinsured) or any beneficiary arising out of this contract of insurance (or reinsurance).

The officer named in the Schedule is authorized and directed to accept service of process on behalf of the Company.

ALL OTHER TERMS AND CONDITIONS REMAIN UNCHANGED.

AUTHORIZED REPRESENTATIVE